These observations – seen as going beyond the institutional competence of the Supreme Court – were not well received. An *Economic Times* editorial criticized the court for passing 'facile judgement on economic paradigms and development strategies' and offering 'legitimacy to populist rants' on neo-liberalism.[32] In an indirect reference to the court's judgement, Arun Jaitley (who would later become union finance minister) noted that it was not for the court to debate the merits of economic liberalization – the 'Supreme Court of India cannot have an economic philosophy'.[33]

Shortly after the court's decision, the UPA government at the centre as well as the BJP-led state government in Chhattisgarh began exploring options to overturn the decision. The central government's primary concern was the knock-on effect that the decision would have on SPOs appointed in other states. Although Chhattisgarh was the only state represented at the hearing, there were passages from the decision that could be read as applying to SPOs across the country.[34] More than 50,000 SPOs were employed in various states aside from Chhattisgarh at the time – with over 30,000 in Jammu and Kashmir alone, and the balance spread across Odisha, Jharkhand, Andhra Pradesh, Maharashtra, Uttar Pradesh and Bihar.[35]

When asked about how it would respond to the decision, the minister of state for home affairs first noted in the Rajya Sabha that the central government was discussing the matter in consultation with the law ministry.[36] Following a few rounds of discussion with Attorney General Goolam Vahanvati, the plan that was originally envisaged was to file a petition seeking a review of the court's decision. However, thereafter the central government instead chose to file an application seeking a clarification on the scope of the decision. That application proved successful, with the Supreme Court clarifying that its decision was restricted to Chhattisgarh.[37] The damage limitation exercise was complete, and the central government no longer needed to be concerned about the tentacles of the decision extending to other states with SPOs.

The state government's initial thinking was also to file a review petition seeking the court's reconsideration of the decision. Moreover, a temporary 'stay' on the enforcement of the decision would, for the government, assuage